

ORIGINAL

(S E R V E D)
(MARCH 18, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 18, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

REQUEST FOR VIEWS AS TO ALTERNATIVE SETTLEMENT PROPOSAL

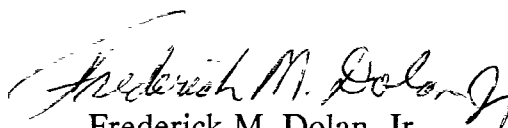
On March 3, 1993, Sea-Land Service, Inc. (Sea-Land) filed a Motion for Settlement Conference which was convened on March 10, 1993, at 10:30 a.m. In my opening remarks I inquired as to whether the parties would waive their right to file a petition seeking me to recuse myself from continuing as the presiding judge if I participated in any settlement discussions. Not all the parties would waive that right. Complainants preferred to negotiate separately with each respondent but not in my presence. I recessed the conference and absented myself. At about 12:20 p.m. the parties informed me that settlement had not yet been reached. The conference was concluded but settlement negotiations were to continue.

On March 16, 1993, the parties wrote to advise me that "at this time, it does not appear that the parties will be able to reach a settlement of this litigation."

Sensing that there may be a desire to discuss further the possibility of settlement but with a neutral party I suggest that the parties give serious consideration to discussing these, and any other relevant matters, with a settlement officer pursuant to the Administrative Dispute Resolution Act, as amended 5 U.S.C. §§ 571-583, P.L. 101-552, 104 Stat. 2736. The parties may utilize the services of Chief Administrative Law Judge Norman D. Kline, Chief Administrative Law Judge Paul Cross of the Interstate Commerce Commission, Gordon M. Shaw, retired, formerly on the staff of the Office of the General Counsel here at the F.M.C., or anyone of their own choosing.

Each of the foregoing persons has had many years of transportation law experience including negotiations, settlements, mediations and other forms of alternate dispute resolution. Such alternative means have lead to creative, efficient and sensible outcomes to pending litigation. A further conference might be convened with all the decision-makers to the case present, i.e., persons representing complainants, respondents, and intervenor with the authority to negotiate concerning resolution of the issues in controversy. All dispute resolution communications and communications provided in confidence to the settlement officer shall remain confidential.

The parties should advise me within five days or such other period as may be necessary of their views as to the foregoing proposal. Of course, agreement to any form of alternative dispute resolution is voluntary.


Frederick M. Dolan, Jr.
Administrative Law Judge